

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 15-04

CROCUS INVESTMENTS, LLC AND CROCUS, FZE,

— vs. —

**MARINE TRANSPORT LOGISTICS, INC. AND ALEKSANDR SOLOVYEV
a/k/a ROYAL FINANCE GROUP INC.**

CERTIFICATION OF MARCUS A. NUSSBAUM

Marcus A. Nussbaum, pursuant to 28 U.S.C. § 1746, making the following Certification under penalty of perjury, in lieu of oath or affidavit says:

1. I am a citizen and resident of the State of New Jersey and am a member in good standing of the Bars of the States of New Jersey and New York.
2. I am the attorney for complainants Crocus Investments, LLC (“Crocus LLC”), and Crocus FZE, in the within action, and as such, I am fully familiar with the facts and circumstances of the within action, based upon a review of the file pertaining to same as maintained by my office.
3. I am also counsel for Crocus Investments, LLC, Crocus FZE, Alexander Safonov, and Middle East Asia Alfa FZE in the matter of *World Express & Connection, Inc. v. Crocus Investments, LLC et al.* (U.S.D.C. – D.N.J., 2:15-cv-08126-KM-MAH) which is ongoing in the U.S. District Court for the District of New Jersey wherein my clients are defendants and third-party plaintiffs.
4. I am additionally counsel for complainants, MAVL CAPITAL, INC., IAM & AL GROUP INC., and MAXIM OSTROVSKIY in a related action pending at the Commission involving the subject Mercedes and Porsche at issue herein, (FMC Docket No.: 16-16), initiated by complainants against respondent Marine Transport Logistics Inc. (“MTL”) and others alleging violations of the Shipping Act of 1984.

5. I am also counsel for plaintiffs in the matter of *MAVL CAPITAL, INC., et al. v. Marine Transport Logistics, Inc. et al.*, (U.S.D.C. – E.D.N.Y. Docket No.: 1:13-cv-07110-SLT-RLM).

6. Annexed hereto as Appendix “A” is a true and accurate copy of an email received by the undersigned from the U.S. Customs and Border Protection Agency Helpdesk, dated July 7, 2017.

7. On August 14, 2018, in the matter of *World Express, supra*, plaintiff World Express & Connection, Inc. and third-party defendants MTL, Royal Finance Group, Inc. (“RFG”), Car Express & Import Inc. (“Car Express”), Aleksandr Solovyev, Alla Solovyeva, Raya Bakhirev, and Roman Chernin produced a “supplemental response to Court’s Order, dated May 21, 2018 regarding discovery disputes and the July 30, 2018 telephone conference.” That document is annexed hereto as Appendix “B”. Paragraph “3” of the supplemental response states as follows:

Attached as pages 7-9, is an email that could be relevant as the attachment to such appears to reference some of the subject boats.

8. Page “7” of the supplemental response is an email in Russian, dated May 29, 2013 from Tango333@rambler.ru. A translation of the email, which I did myself, along with a copy of the original email is annexed hereto as Exhibit “C”. The email provides as follows:

“Hello. In the original invoice, the price for the boats is 28,192 US but you wrote to me 29,192 US – you probably made a mistake. You have my credit of 15,207 US (look at the file). Where are the documents regarding the Regal, I only have a copy of the dock receipt and invoice, is this enough?”

9. Page “7” of the supplemental response also has a photo of a Microsoft Word document icon, with Russian text underneath it which reads: “Completed purchases.doc”. (See, Exhibit “C”).

10. Pages “8” and “9” of the supplemental response are two spreadsheets containing Russian text which I have translated myself, which are also annexed hereto. (See, Exhibit “C”).

11. Page “8” of the supplemental response contains text in Russian, which I have translated myself and which states as follows:

1	3/28/2013	INVOICE # 1148AT	2005 BAYLINER TROPHY 2002	\$10,530	SERGEY	PAID
2	3/28/2013	INVOICE # 1149AT	2004 MAXUM BOAT 1905	\$9,655	SERGEY	PAID
3	4/17/2013	INVOICE # 1164AT	2004 BAYLINER 1905	\$8,470	SERGEY	PAID
4	5/7/2013	INVOICE # 1177AT	2006 CHAPPAREL 190	\$15,455	SERGEY	PAID
5						
6						
7	4/4/2013	INVOICE # 1154AT	2006 SEA REY 270	\$12,855	ALEXANDER	PAID
8	4/18/2013	INVOICE # 1167AT	2002 CHAPPAREL 225 SSI	\$10,805	ALEXANDER	PAID
9	4/18/2013	INVOICE # 1168AT	2011 MONTEREY 210	\$14,855	ALEXANDER	PAID
10	4/18/2013	INVOICE # 1165AT	2005 REGAL 2865	\$37,845	ALEXANDER	PAID
11	4/16/2013	INVOICE # 1158AT	2013 MERSEDES GL 450 4 MT	\$65,083	ALEXANDER	PAID
12	4/22/2013	INVOICE # 1175AT	2005 FORD F 2500	\$7,500	ALEXANDER	PAID
13	4/24/2013	INVOICE # 1174AT	2007 FOUR WINNS 224 SSI	\$17,805	ALEXANDER	PAID

12. Page “9” of the supplemental response contains text in Russian, which I have translated myself and which states as follows:

ALEXANDER TRANSFER MONEY			
AMOUNT ALREADY TRANSFERRED	50 555 US		
AMOUNT ALREADY TRANSFERRED	65 000 US		
AMOUNT ALREADY TRANSFERRED	35 000 US		
AMOUNT ALREADY TRANSFERRED	30 000 US		
TOTAL AMOUNT TRANSFERRED	180 555 US		
TOTAL AMOUNT PURCHASED	165 348 US		
CREDIT REMAINING	15 207 US		
BALANCE MTL	15 207 US		

The foregoing is true and correct to the best of my knowledge under the penalties of perjury under 28 U.S.C. § 1746.

Executed on: April 30, 2019

/s Marcus Aurelius Nussbaum
Marcus A. Nussbaum, Esq.

APPENDIX “A”



Marcus Nussbaum <marcus.nussbaum@gmail.com>

RE: Export Requirements

NY-NWK PROB RES <NY-NWKPROBRES@cbp.dhs.gov>
To: Marcus Nussbaum <marcus.nussbaum@gmail.com>

Fri, Jul 7, 2017 at 1:29 PM

Good Afternoon,

Under 19 CFR 192.2, export validation requirements do not apply to watercraft, including jet skis and boats. The trailer however is considered a self-propelled vehicle and is subject to title validation at the CBP Car Desk. See attached for guidelines on required documentation.

From: Marcus Nussbaum [mailto:marcus.nussbaum@gmail.com]
Sent: Thursday, July 06, 2017 9:02 PM
To: NY-NWK PROB RES <NY-NWKPROBRES@cbp.dhs.gov>
Subject: Fwd: Export Requirements

Dear Sir or Madam,

I am writing to you with regard to the export of a small pleasure boat together with a boat trailer. I am aware that your office issues a Newark Vehicle Enforcement Team Rejection Form if the export documents are not sufficient.

Can you kindly confirm whether or not as part of the export requirements regarding the export of a small pleasure boat and boat trailer, if a original title, certificate of origin, or certified title or salvage certificate for the boat and/or trailer must be provided.

If this is not required, which documentation must be provided by the State Department of Motor Vehicles.

Thank you in advance.

Regards,

Marcus A. Nussbaum



Procedures-Pipeline-No-16-004-NWK-for-Exporting-Self-Propelled-Vehicles.pdf

817K

APPENDIX “B”

WORLD EXPRESS & CONNECTION, INC,	Plaintiff.	
— against —		
CROCUS INVESTMENTS, LLC, CROCUS FZE, ALEXANDER SAFANOV, MIDDLE EAST ASIA ALFA FZE.	Defendants.	
-----		15-CV-8126 (KM)(MAH)
-- CROCUS INVESTMENTS, LLC CROCUS FZE, ALEXANDER SAFANOV, MIDDLE EAST ASIA ALFA FZE.	Third-Party Plaintiffs.	Plaintiff's/Third-Party Defendants' supplemental response to Court's Order, dated May 21, 2018 regarding discovery disputes and the July 30, <u>2018 telephone conference.</u>
— against —		
MARINE TRANSPORT LOGISTICS, INC., ROYAL FINANCE GROUP. INC., CAR EXPRESS & IMPORT INC., ALEKSANDR SOLOVYEV, ALLA SOLOVYEVA, VADIM ALPER a/k/a DIMITRY ALPER, RAYA BAKHIREV, ROMAN CHERNIN.	Third-Party Defendants.	

1. The first document attached (pages 1-2) are emails dated April 26 and 27 of 2013 referencing a trailer that could be responsive. Pursuant to the phone conference, held on July 30, 2018, counsel for Defendants/Third-Party Plaintiffs was directed to provide the VIN number of a trailer identified in the most recent joint letter — to date, such was not provided.

2. Attached as pages 3-6 is an email dated March 30, 2014 that could be relevant to the subject boats.

3. Attached as pages 7-9, is an email that could be relevant as the attachment to such appears to reference some of the subject boats.

Plaintiff/Thrid-Party Defendants reserve all objections as to relevance and admissibility.

August 14, 2018

/s/ Garry Pogil, Esq

From: "Tango333@rambler.ru" <tango333@rambler.ru>
Reply-To: "Tango333@rambler.ru" <Tango333@rambler.ru>
Date: Saturday, April 27, 2013 at 12:04 PM
To: Alex Solovyev <mtlworld@mtlworld.com>
Subject: RE: Re: БОЛЕЕ ПРИЛИЧНЫЙ ИНВОЙС

Саня , че там мерить размеры от официалов там точно ничего не поменяется, Влад давал цену с запасом на 32 фута, а треллер на 27 футов 1800 ну правда очень дорого

27 апреля 2013 г. 19:06:03 пользователь Alex Solovyev (mtlworld@mtlworld.com) написал:

В порту перемерили, большой гад. Размеры и цены в понедельник!
Не могу найти трейлер под сирей, тот что за 900 оказался маленьким? Надо покупать новый, под эту лодку минимум \$1800? Решай

Aleksandr Solovyev
1.646.725.1335

On Apr 27, 2013, at 10:20 AM, "Tango333@rambler.ru" <tango333@rambler.ru> wrote:

так это же не я ошибся а ты как я сейчас объясняться буду откуда еще 1500 прибавилась- деньги уже отправили , кстати сказать сколько доставка Ригала ты вроде обещал сделать дешевле чем Влад ?

27 апреля 2013 г. 15:35:51 пользователь Alex Solovyev (mtlworld@mtlworld.com) написал:

На шипинше разница. Была 1800 – а теперь 3200. Ну и на сколько разница?

--
Aleksandr Solovyev
Car Express & Import Inc
As an agent for Marine Transport

63 New Hook Road,
Bayonne, NJ 07002
Tel: 201-858-8600 Ext: 117
Fax: 201-858-8607
Cell: 646-725-1335
Skype: aleksandr.solovyev

Unless otherwise noted, all ocean freight quotations are: valid for 30 days from the date of original quotation, subject to equipment availability, subject to any and all tariff additional valid at time of shipment.
Inland freight quotations are: subject to third party increases valid at time of shipment, subject to any fuel surcharges valid at time of shipment, subject to weight limitations and weight distribution requirements in accordance with the local and national rules and regulations of the country(ies) of transit, subject to availability of inland carrier at time of booking. Loading, lashing, securing, blocking and bracing of cargo is for shipper's account. Carrier reserves the right to stow cargo in the best interest of the Vessel and in compliance with local, national and international rules, regulations and conventions. On deck shipments at shipper's risk. Dangerous cargo, as defined by 49 CFR or the IMDG Code, is subject to the line's approval at time of booking. Kindly note all vessel dates are subject to changes. Equipment is subject to availability.

ALL COMMUNICATION IN THIS EMAIL IS PRIVILEGED AND INTENDED ONLY FOR THE ORIGINAL RECIPIENT. ALL OTHER USE OF SUCH COMMUNICATION IS PROHIBITED BY LAW.

Go Green! Please don't print this e-mail unless you REALLY, REALLY need to.

From: Alex Solovyev <mtlworld@mtlworld.com>
Date: Friday, April 26, 2013 6:44 PM
To: "Tango333@rambler.ru" <Tango333@rambler.ru>
Subject: БОЛЕЕ ПРИЛИЧНЫЙ ИНВОЙС

Первый неправильный из –за котки???? Да и лодочка не 22 а 24 фита...
тракер хотел 1500 сегодня сбить за обман??
Так что учтите в расчетах.

--

Aleksandr Solovyev
Car Express & Import Inc
As an agent for Marine Transport
63 New Hook Road,
Bayonne, NJ 07002
Tel: 201-858-8600 Ext: 117
Fax: 201-858-8607
Cell: 646-725-1335
Skype: aleksandr.solovyev

Unless otherwise noted, all ocean freight quotations are: valid for 30 days from the date of original quotation, subject to equipment availability, subject to any and all tariff additional valid at time of shipment.
Inland freight quotations are: subject to third party increases valid at time of shipment, subject to any fuel surcharges valid at time of shipment, subject to weight limitations and weight distribution requirements in accordance with the local and national rules and regulations of the country(ies) of transit, subject to availability of inland carrier at time of booking. Loading, lashing, securing, blocking and bracing of cargo is for shipper's account. Carrier reserves the right to stow cargo in the best interest of the Vessel and in compliance with local, national and international rules, regulations and conventions. On deck shipments at shipper's risk. Dangerous cargo, as defined by 49 CFR or the IMDG Code, is subject to the line's approval at time of booking. Kindly note all vessel dates are subject to changes. Equipment is subject to availability.

ALL COMMUNICATION IN THIS EMAIL IS PRIVILEGED AND INTENDED ONLY FOR THE ORIGINAL RECIPIENT. ALL OTHER USE OF SUCH COMMUNICATION IS PROHIBITED BY LAW.

Go Green! Please don't print this e-mail unless you REALLY, REALLY need to.

From: <tango9889@gmail.com>
Reply-To: "Tango333@rambler.ru" <Tango333@rambler.ru>
Date: Sunday, March 30, 2014 at 11:12 AM
To: Alex Solovyev <mtlworld@mtlworld.com>
Subject: FWD: FW: Проблема с регистрацией

----- Пересланное сообщение -----

От кого: Thomas Faerber (thomas.faerber@nabooda-auto.com)

Дата: 30 марта 2014 г. 17:57:17

Тема: FW: Test

Кому: tango9889@gmail.com (tango9889@gmail.com)

FW: Test

مع أطيب التحيات

Thomas Faerber

General Manager - Projects & Logistics

Al Nabooda Automobiles LLC

Switchboard: 00971 (0) 4 7053333

Direct Line.: 00971 (0) 4 7053386

Fax: 00971 (0) 4 3386990

Mob.: 00971 55 9816694

e-mail: thomas.faerber@nabooda-auto.com

www.nabooda-auto.com

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From: Marine Registration Services LLC [<mailto:mrs@marine.ae>]
Sent: Sunday, March 30, 2014 5:41 PM
To: Ronak Ali
Subject: RE: Test

Dear Mr. Ali,

Please be informed that we have before your boat documents, Mr. Anthony bring it already here in our office for registration and NTA rejected it because of the missing documents which is that the company LIBERTY MUTUAL GROUP sell to MARINE TRANSPORT LOGISTIC. They need the proof that Liberty sold to Marine the boat. We need this documents attested also. I think this is already explained to you by Anthony. If you have any question, please feel free to contact our Operations Manager/PRO who is always in NTA (National Transport Authority).

Regards.

Jane Gaela – Receptionist

MARINE REGISTRATION SERVICES (L.L.C.)

| 2nd Floor Office 12 Al Diyafah Bldg. 2nd December St. Diyafah

| P.O. Box 283086, Dubai, United Arab Emirates

| M: +971 (0)56 2611678

| T: +971 (0)4 3866777 | F: +971 (0)4 3857761

| E: mrs@marine.ae | W: www.marine.ae



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From: Ronak Ali [<mailto:ali.ronak@nabooda-auto.com>]
Sent: Sunday, March 30, 2014 9:09 AM
To: Marine Registration Services LLC
Subject: RE: Test

Dear Ms. Jane

It was really Nice talking to you,

As per our conversation Please find herewith attached Boat Documents and kindly advice if all the docs are correct for the registration?

Best Regards,

ALI RONAK

Supervisor-Logistics & Sales Support
Volkswagen 

Al Nabooda Automobiles LLC
P.O. Box 10773, Dubai
United Arab Emirates

Phone: + 971 4 704 1111

Direct: + 971 4 704 1754

Mobile: + 971 56 174 8378

+ 971 50 929 2269

Fax: + 971 4 7053431

Email: ali.ronak@nabooda-auto.com

Website: www.nabooda-auto.com
www.volkswagen-dubai.com



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From: Marine Registration Services LLC [<mailto:mrs@marine.ae>]

Sent: Sunday, March 30, 2014 8:58 AM

To: Ronak Ali

Subject: Test

Good morning Mr. Ali.

Please send the documents of boat for us to check in NTA.

Regards.

Jane Gaela – Receptionist

MARINE REGISTRATION SERVICES (L.L.C.)

12nd Floor Office 12 Al Divafah Bldg. 2nd December St. Divafah

P.O. Box 283086, Dubai, United Arab Emirates
M: +971 (0)56 2611678
T: +971 (0)4 3866777 | F: +971 (0)4 3857761
E: mrs@marine.ae | W: www.marine.ae



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On 5/29/13, 11:23 PM, "Tango333@rambler.ru" <Tango333@rambler.ru> wrote:

Привет в оригинальном инвойсе цена на лодку 28 192 US а ты написал 29 192 US - ошибся наверное у тебя на остатке 15 207US (смотри файл) . А где документы на ригал у меня только копия Док ресида и инвойс этого достаточно ?



СДЕЛАННЫЕ
ПОКУПКИ.doc

APPENDIX “C”

ORIGINAL VERSION (3 PAGES) FOLLOWED BY TRANSLATION (3 PAGES)

ORIGINAL VERSION

On 5/29/13, 11:23 PM, "Tango333@rambler.ru" <Tango333@rambler.ru> wrote:

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СДЕЛАННЫЕ
ПОКУПКИ.doc

[illegible]

ORIGINAL VERSION

АЛЕКСАНДР ПЕРЕВОД ДЕНЕГ			
ПЕРЕВЕДЕНЫ ДЕНЬГИ В СУММЕ	50 555 US		
ПЕРЕВЕДЕНЫ ДЕНЬГИ В СУММЕ	65 000 US		
ПЕРЕВЕДЕНЫ ДЕНЬГИ В СУММЕ	35 000 US		
ПЕРЕВЕДЕНЫ ДЕНЬГИ В СУММЕ	30 000 US		
ИТОГО СУММА ПЕРЕВОДОВ	180 555 US		
ИТОГО СУММА ПОКУПОК	165 348 US		
ОТ ПОКУПКИ ОСТАТОК	15 207 US		
БАЛЛАНС MTL	15 207 US		

TRANSLATION

This box reads as follows: "Hello. In the original invoice, the price for the boats is 28,192 US but you wrote to me 29,192 US – you probably made a mistake. You have my credit of 15,207 US (look at the file). Where are the documents regarding the Regal, I only have a copy of the dock receipt and invoice, is this enough?"

On 5/29/13, 11:23 PM, "Tango333@rambler.ru" <Tango333@rambler.ru> wrote:

Привет в оригинальном инвойсе цена на лодку 28 192 US а ты написал 29 192 US - ошибся наверное у тебя на остатке 15 207US (смотри файл) . А где документы на ригал у меня только копия Док ресида и инвойс этого достаточно ?



СДЕЛАННЫЕ
ПОКУПКИ.doc

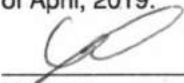
This box reads as follows: "Completed purchases.doc"

I, Marcus A. Nussbaum, hereby certify as follows:

1. I am fluent in Russian and English.
2. The foregoing translation is, to the best of my knowledge and belief, a true and accurate translation from Russian to English.


Marcus A. Nussbaum

Subscribed and Sworn
before me on the 30th day
of April, 2019.


Notary
DANIEL S. AYZENBERG
NOTARY PUBLIC, State of New York
No. 02AY6230275
Qualified in New York County
Commission Expires November 1, 2019

These four cells all read "Sergey"

1	03/28/2013	INVOICE # 1148AT	2005 BAYLINER TROPHY 2002	\$10,530	СЕРГЕЙ	ОПЛАЧЕНО
2	03/28/2013	INVOICE # 1149AT	2004 MAXUM BOAT 1905	\$ 9,655	СЕРГЕЙ	ОПЛАЧЕНО
3	04/17/2013	INVOICE # 1164AT	2004 BAYLINER 1905	\$ 8,470	СЕРГЕЙ	ОПЛАЧЕНО
4	05/07/2013	INVOICE # 1177AT	2006 CHAPPAREL 190	\$15,455	СЕРГЕЙ	ОПЛАЧЕНО
5						
6						
7	04/04/2013	INVOICE # 1154AT	2006 SEA REY 270	\$12,855	АЛЕКСАНДР	ОПЛАЧЕНО
8	04/18/2013	INVOICE # 1167AT	2002 CHAPPAREL 225 SSI	\$10,805	АЛЕКСАНДР	ОПЛАЧЕНО
9	04/18/2013	INVOICE # 1168AT	2011 MONTEREY 210	\$14,855	АЛЕКСАНДР	ОПЛАЧЕНО
10	04/18/2013	INVOICE # 1165AT	2005 REGAL 2865	\$37,845	АЛЕКСАНДР	ОПЛАЧЕНО
11	04/16/2013	INVOICE # 1158AT	2013 MERSEDES GL 450 4 MT	\$65,083	АЛЕКСАНДР	ОПЛАЧЕНО
12	04/22/2013	INVOICE # 1175AT	2005 FORD F 2500	\$ 7,500	АЛЕКСАНДР	ОПЛАЧЕНО
13	04/24/2013	INVOICE # 1174AT	2007 FOUR WINNS 224 SSI	\$17,805	АЛЕКСАНДР	ОПЛАЧЕНО

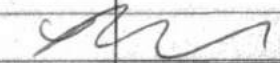
These four cells all read "paid"

These seven cells all read "Alexander"

These seven cells all read "paid"

I, Marcus A. Nussbaum, hereby certify as follows:

- I am fluent in Russian and English.
- The foregoing translation is, to the best of my knowledge and belief, a true and accurate translation from Russian to English.


Marcus A. Nussbaum

Subscribed and Sworn
before me on the 30th day
of April, 2019.

Notary
DANIEL S. AYZENBERG
NOTARY PUBLIC, State of New York
No. 02AY6230275
Qualified in New York County
Commission Expires November 1, 2019

TRANSLATION

АЛЕКСАНДР ПЕРЕВОД ДЕНЕГ			
ПЕРЕВЕДЕНЫ ДЕНЬГИ В СУММЕ	50 555 US		
ПЕРЕВЕДЕНЫ ДЕНЬГИ В СУММЕ	65 000 US		
ПЕРЕВЕДЕНЫ ДЕНЬГИ В СУММЕ	35 000 US		
ПЕРЕВЕДЕНЫ ДЕНЬГИ В СУММЕ	30 000 US		
ИТОГО СУММА ПЕРЕВОДОВ	180 555 US		
ИТОГО СУММА ПОКУПОК	165 348 US		
ОТ ПОКУПКИ ОСТАТОК	15 207 US		
БАЛЛАНС MTL	15 207 US		

← This line reads: "ALEXANDER TRANSFER MONEY"

← These four lines all read as follows: "Amount Already Transferred"

← This line reads: "Total Amount Transferred"

← This line reads: "Total Amount Purchased"

← This line reads: "Credit Remaining"

← This line reads: "Balance MTL"

I, Marcus A. Nussbaum, hereby certify as follows:

1. I am fluent in Russian and English.
2. The foregoing translation is, to the best of my knowledge and belief, a true and accurate translation from Russian to English.


 Marcus A. Nussbaum

Subscribed and Sworn
 before me on the 30th day
 of April, 2019.

Notary
 DANIEL S. AYZENBERG
 NOTARY PUBLIC, State of New York
 No. 02AY6230275
 Qualified in New York County
 Commission Expires November 1, 2019